

LEGAL UPDATES

ADOPTION WHILE THE
PARENTS ARE AROUND!



JUSTICE CLUB
Legal Updates

2024



Disclaimer:

The legal updates provided by university law students are intended for informational purposes only and do not constitute legal advice. While every effort is made to ensure the accuracy and reliability of the information presented, we make no representations or warranties of any kind, express or implied, about the completeness, accuracy, reliability, suitability, or availability with respect to the content provided. Readers are advised to consult with qualified legal professionals for specific legal advice tailored to their individual circumstances. Reliance on the information provided in these updates is solely at the user's own risk.



Adoption while the parents are around!

Adoption is a practice that is seen all through out the world including our country Ethiopia. It has been practiced here in Ethiopia in an informal way by different part of the society under different name as “ የጡት ልጅ ” or” gudifacha “, now a day’s it has taken a formal route as a necessity.

*by S.K, a second year law student at Addis Ababa University, serving as a member of Legal Updates Team within the student-led Justice Club.



Adoption is a creation of parent and child relation between two bodies. while it has it's own procedure and requirement, for now we are gone focus on whether it's appropriate for a child that have parents to be adopted , Is it legal? or not? , If so why?, Who benefits at the end? This issues will be covered in the next article.



Children shouldn't grow up in an environment that is not suitable for their health and growth, Even though we shouldn't undermine the relationship between parents and children and their connection, sometimes that's not enough and other times parents are not even willing to share and nurture that natural connection with their children despite being well off.



We should definitely encourage parents who can provide both or at least try, but for children that are stuck with two people who are not loving and don't provide for them just because they share a DNA is not fair, so adoption is the most moral thing a society can provide for this children.



Adoption should be allowed to benefit the children because it shouldn't be allowed to lift off the burden of couples who happen to have kids but rather to give the child the life that can sustain their health and their future prospects of life. whether a parent is involved or not, adoption should solely be done because of the benefit of the child it shall be a primary considerations.

What does the law of our country have to say in this matter?



To answer the question of legality we can look at article 187 of the revised family code, which points out that a child merely conceived can get adopted but the child couldn't give its consent while in the womb so the parents are asked for their consent, further more, According to Article 191 of the revised family code it lists out organs that give out consent to go through with the adoption of a child the first is the parents if they are alive, institutions that have custody of the child even etc...



So to clear up the question Ethiopian law does have a room to go through adoption even when parents of a child is alive. But that doesn't mean parents can just hand out their children to people and call it adoption all adoption whether the parents of the child is involved or not, should be approved by the court .

In conclusion adoption while the parents of a kid is still alive is practiced in Ethiopia and assessing the best interest of a child it should continue that way.